

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
ERAN TAUSSI,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER MICHAEL
UPSTICK TAX ID NO 948517 of the 121st Precinct, in his personal
and official capacity, POLICE OFFICERS JOHN DOES 1-10 of the
121st Police Precinct (names are currently unknown), in their
personal and official capacity, ALL POLICE OFFICERS
INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND
ALL SUPERVISORY POLICE OFFICERS VESTED AND
CHARGED WITH COMANDING AUTHORITY OVER THE
POLICE OFFICERS AS CLAIMED HEREIN all in their individual
and official capacity,

Defendant (s),
-----X

SUMMONS AND COMPLAINT

Index No. _____
Plaintiff(s) designates
RICHMOND County
as the place of trial
The basis of venue is
The place and County of the occurrence

To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: April 21, 2015

Defendant's Addresses:

Notice: The object of this action is to recover for personal injury
due to defendant(s) negligence

The relief sought is Monetary Damages

Upon your failure to appear, judgment will be taken against you by default with interest from 1/30/2014 and the costs of this action.

/s/ Alexander Roytblat

BY: ALEXANDER ROYTBLAT, ESQ.

This SUMMONS AND COMPLAINT
and the papers on which it is based, are
certified pursuant to Section 130-1.1-a
of the rules of the Chief Administrator
(22NYCRR)

ROYTBLAT & KALANT, PLLC

Attorney(s) for Plaintiff(s)

Office and Post Office Address

1928 Kings Hwy. 3rd Floor

Brooklyn, New York 11229

(718) 872-6374

DEFENDANT(S) ADDRESS(ES)

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

PO MICHAEL UPSTIK
121st Precinct
970 Richmond Ave,
Staten Island, NY 10314

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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ERAN TAUSSI,

Plaintiff,

-against-

VERIFIED COMPLAINT

Index No.:

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COMANDING AUTHORITY OVER THE POLICE
OFFICERS AS CLAIMED HEREIN all in their individual
and official capacity,

Defendants.

-----X
Plaintiff, complaining of the defendants, by his attorney, upon information and belief,
respectfully allege(s):

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ERAN TAUSSI

1. That at all the times herein mentioned the defendant THE CITY OF NEW YORK,
(hereinafter referred to as NYC), was and still is a municipal corporation, duly organized
and existing under and by virtue of the laws of the State of New York.
2. That at all the times herein mentioned, the defendant POLICE OFFICER MICHAEL
UPSTICK TAX ID NO 948517 of the 121st precinct (hereinafter referred to as UPSTICK)
was and still is a police officer employed by defendant, NYC.
3. That notice of plaintiff's claim and notice of intention to sue and of the time when and the
place where the injuries alleged herein were incurred and sustained was duly filed by the

plaintiffs with the Corporation Counsel of the defendant NYC and with the Comptroller of the defendant NYC, with the Legal Department of the NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as NYPD), within 90 days after the cause of action herein accrued.

4. That 30 days have elapsed since filing Notice of Claim and that a hearing was not held.
5. That more than 30 days have elapsed since the demand for claim upon which this action was founded was presented for adjustment and that the Comptroller has neglected and refused to make adjustment or payment thereof for said period of 30 days after such presentation, and that this action is commenced within one year after the cause of action accrued.
6. That on January 30, 2014, at approximately 2:30 PM, defendant UPSTICK unjustifiably detained and arrested, verbally and physically abused plaintiff and did commit an assault and battery upon plaintiff, causing personal injuries, and bodily harm.
7. That on January 30, 2014, at approximately 2:30 PM, defendant UPSTICK, did handcuff, falsely arrest, falsely charge, unlawfully detain and maliciously prosecute plaintiff with the penal law violations of criminal contempt.
8. That the aforesaid acts of defendants were willful, intentional and unwarranted and without any just cause or provocation.
9. That at all times herein mentioned, and specifically on January 30, 2014, defendant UPSTICK, was on duty as Police Officer for defendants NYC and NYPD.
10. That at all the times herein mentioned, and specifically January 30, 2014, defendant UPSTICK was in uniform as Police Officer for defendants NYC and NYPD.
11. That at all the times herein mentioned, and specifically January 30, 2014, defendant UPSTICK, was acting within the scope of his employment as police officer for defendant

NYC and NYPD.

12. That the defendants NYC, NYPD, defendant UPSTICK and defendants, POLICE OFFICERS JOHN DOES 1-10 of the 121st Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity, their agents, servants and/or employees were negligent in performing their duties; in failing to protect plaintiff from actual and imminent harm; in hiring and/or retaining in its employ personnel who are violent and/or possess violent propensities; who would assault and commit battery on law abiding individuals; law enforcement personnel who make an arrest without reasonable cause; in failing to adequately train and supervise its personnel; in causing, allowing and/or permitting unwarranted use of force and restraint against claimant; and in causing, allowing or permitting its personnel to improperly effectuate arrest, all in violation of statutes, ordinances and regulations.
13. That at all the times herein mentioned, the actions of the defendants NYC, NYPD and, defendant UPSTICK and defendants, POLICE OFFICERS JOHN DOES 1-10 of the 121st Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity were negligent and not in accordance with proper procedures and regulations.
14. That the defendants NYC, NYPD and, defendant UPSTICK and defendants, POLICE

OFFICERS JOHN DOES 1-10 of the 121st Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity, their agents, servants and/or employees owed a duty of care to plaintiff, ERAN TAUSSEI not to negligently, carelessly accuse of and maliciously prosecute him with crimes.

15. That the defendants, NYC, NYPD and, defendant UPSTICK and defendants, POLICE OFFICERS JOHN DOES 1-10 of the 121st Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity, their agents, servants and/or employees owed a duty of care to plaintiff, ERAN TAUSSEI, breached said duty in negligently and carelessly accusing him of and maliciously prosecuting him for allegedly violating New York State Penal Law crime of aggravated harassment.
16. That said occurrence and the resulting prolonged incarceration and personal injuries to the said plaintiff were caused through no fault of his own, but were caused solely and wholly by reason of the negligence of the aforementioned defendants as set forth above.
17. That by reason of the foregoing, the said plaintiff was caused to sustain prolonged incarceration, serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick,

sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation; unable to commence employment and therefore incurred substantial loss of wages for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ERAN TAUSSE

18. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 17 of this complaint with the same force and effect as though fully set forth herein.
19. That on or about January 30, 2014, defendant UPSTICK did verbally, physically, intentionally, maliciously and deliberately abuse the plaintiff with neither provocation nor privilege, and did commit an assault and battery upon plaintiff, causing severe personal injuries and serious and permanent bodily harm to the plaintiff .
20. That at the time of such malicious prosecution, the defendant UPSTICK was an employee of the defendants and was acting as the defendants' agent in doing the acts complained of herein and was acting within the scope of his authority and while he was acting or attempting to be acting in the defendant's interest.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ERAN TAUSSE

21. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 20 of this complaint with the same force and effect as though fully

set forth herein.

22. That or about January 30, 2014, the defendant UPSTICK was negligent in causing and allowing and/or permitting his body or parts thereof as well as well as parts of inanimate objects to come in contact with the person of the plaintiff in such a manner as to cause severe personal injuries and serious and permanent bodily harm to the plaintiff.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ERAN TAUSSE

23. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 22 of this complaint with the same force and effect as though fully set forth herein.
24. That on or about January 30, 2014, the defendants alleged that the plaintiff was committing aggravated harassment, thereupon without warrant, probable cause or sufficient justification, arrested the plaintiff on the alleged charges and restrained and booked the plaintiff and deprived the plaintiff of his liberty.
25. That the charges filed by the defendants were false and unsupported by the facts or the evidence.
26. That the defendants knew that the charges were false and unsupported by the facts or the evidence.
27. That in making this charge and in causing the arrest and detention of the plaintiff the defendants acted maliciously and wrongfully and with improperly and with intent to injure the plaintiff and with reckless disregard of the safety of the plaintiff as well as readily available exculpatory evidence.
28. That the Richmond County Office of the District Attorney declined to prosecute the charges brought by the defendants and the criminal matter was disposed of in plaintiff's favor.

29. That at the time of such malicious prosecution, the defendants UPSTICK, POLICE OFFICERS JOHN DOES 1-10 of the 121st Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity were employees of the defendants NYC, and NYCD and were acting as the defendants', NYC and NYPD agents in doing the acts complained of herein and were acting within the scope of their authority and while they were acting or attempting to be acting in the defendants' interest.

30. That at the time of such malicious prosecution, the defendants UPSTICK, POLICE OFFICERS JOHN DOES 1-10 of the 121st Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity, acted with malice and without probable cause in making complaint in making false statements against plaintiff, in that the defendants did not honestly and reasonably believe that there were grounds for the action since defendant had no facts or evidence to establish any wrongdoing on the part of plaintiff

31. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes,

permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation; unable to commence employment and incurred substantial economic damages for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ERAN TAUSSE

32. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 31 of this complaint with the same force and effect as though fully set forth herein.
33. That on January 30, 2014 plaintiff was charged by the defendants with aggravated harassment.
34. That this arrest was illegal and without basis in fact or authority of law.
35. That plaintiff was deprived of his liberty and was held in detention cells until approximately February 1, 2015.
36. As a result of the false arrest and illegal imprisonment which the plaintiff suffered, plaintiff's health was impaired, and plaintiff suffered great mental distress.
37. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation; unable to commence employment and incurred substantial economic damages

for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ERAN TAUSSE

38. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 37 of this complaint with the same force and effect as though fully set forth herein.

39. The aforementioned actions of defendants were so outrageous, malicious and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

40. Defendants acted with the desire and intent to cause plaintiff emotional distress or acted under circumstance known to them which made it substantially certain that they would cause such emotional distress.

41. Defendants acted with utter disregard of the consequences of their actions.

42. That as a direct and proximate result of the actions by the defendants, Plaintiff was caused to suffer the intentional infliction of emotional distress.

43. By reason of the foregoing, defendants became liable to plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ERAN TAUSSE
(42 U.S.C. § 1983)

44. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 43 of this complaint with the same force and effect as though fully set forth herein.

45. The defendant UPSTICK, and certain other police officers who's names are not presently

known to plaintiff, lacked reasonable suspicion to stop and detain the plaintiff, ERAN TAUSSI, and further lacked any probable cause to arrest him or retain him in prolonged custody.

46. The wrongful stop, false detainment, assault, wrongful arrest, malicious prosecution, and other wrongful acts conducted against the plaintiff by the defendant UPSTICK, in his official and individual capacity and POLICE OFFICERS JOHN DOES 1-10 of the 121st Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity were committed under color of law, customs, and statutes of the state of New York.

47. Under color of law, the defendants NYC, NYPD, defendant MANOSALVAS in his official and individual capacities and POLICE OFFICERS JOHN DOES 1-10 of the 121st Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity deprived the plaintiff ERAN TAUSSI of his Fourth, Fifth, and Fourteenth Amendment rights to protection from unlawful search and seizure, Equal Protection and Due Process, by falsely arresting, wrongfully detaining, unlawfully, falsely charging the plaintiff with criminal charges, for which there is no evidence or substantiation of any kind and maliciously prosecuting.

48. The accusations of wrongful actions leveled against plaintiff were false and were an

attempt to cover up the false arrest, abuse of process, failure to properly investigate, intentional and false imprisonment, false accusations, discriminatory harassment, malicious prosecution, defamation and abuse of process which has been inflicted by defendants on plaintiff.

49. The false arrest of plaintiff ERAN TAUSSE without probable cause, and other wrongful acts conducted against the plaintiff by defendants, including, but not limited to defendants' unconstitutionally seizing, falsely arresting, intentionally and falsely imprisoning and detaining, falsely accusing, assaulting, discriminatorily harassing, defaming, and maliciously charging ERAN TAUSSE constitutes a violation of plaintiff's rights, secured by the Fourth Amendment to the United States Constitution, to be free from unreasonable searches and seizures. Such actions were negligent, reckless, unreasonable and unauthorized, as defendants had a duty to not subject plaintiff to false arrest and detention and summary punishment, but failed to prevent same and breached their duty.

50. The defendants NYC, NYPD, defendant UPSTICK in his official and individual capacities and POLICE OFFICERS JOHN DOES 1-10 of the 121st Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity acted under color of law to deny the plaintiff his constitutional rights to due process and freedom from seizure, by wrongfully detaining the plaintiff at the Kings County Central Booking, wrongfully charging him and holding him under the threat of imprisonment for an indeterminate period of time,

without providing a reasonable basis and/or investigation warranting custody, or other due process guarantees secured to the plaintiff by the Fifth and Fourteenth Amendments of the United States Constitution.

51. Such abuse of process was continued by the defendants NYC, NYPD, defendant UPSTICK in his official and individual capacity and POLICE OFFICERS JOHN DOES 1-10 of the 121st Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity, in their refusal to adequately investigate the charges against the plaintiff and to properly review and investigate the actions of defendant officers and officials for their actions against the plaintiff. Specifically, defendants failed to investigate and verify the veracity of the plaintiffs' claims, despite the lack of any significant hearing or consideration by the defendants NYC, NYPD, defendant UPSTICK in his official and individual capacity and POLICE OFFICERS JOHN DOES 1-10 of the 121st Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity for the substantial evidence supporting plaintiff's innocence prior to the arrest and prosecution.

52. As a consequence of defendants' wrongful actions, intentional assault and battery, negligent behavior, and violation of state and federal laws, plaintiff was deprived of his

freedom, was subject to great physical harm, was made to suffer great pain and suffering, and was subjected to great fear and terror and personal humiliation and degradation, and continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of defendants NYC, NYPD, defendant UPSTICK in his official and individual capacity and POLICE OFFICERS JOHN DOES 1-10 of the 121st Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity.

53. That said occurrence and the resulting personal injuries to the said plaintiff were caused through no fault of his own, but were caused solely and wholly by reason of the negligence of the aforementioned defendants as set forth above.

54. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

WHEREFORE, the plaintiff(s) demands judgment against the defendants in First, Second, Third, Fourth, Fifth and Sixth Causes of Action in an amount which exceeds the

jurisdictional limits of all lower courts and which warrants the jurisdiction of this Court, together with the costs and disbursements of each cause of action.

Yours, etc.



ROYTBLAT & KALANT, PLLC
Attorneys for Plaintiff
1928 Kings Highway
3rd Floor
Brooklyn, New York 11229
(718) 872-6374

STATE OF NEW YORK)
COUNTY OF KINGS)

The undersigned, an attorney, admitted to practice in the Courts of the State of New York. The undersigned affirms that the following statements are true under the penalties of perjury.

That deponent is associated with the attorney for the plaintiff in the within action; that deponent has read the foregoing VERIFIED COMPLAINT and knows the contents thereof; that same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes it to be true. Deponent further says that the reason this verification is made by deponent and not by plaintiff is that plaintiff resides outside of the County where your deponent holds his office.

The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows:

Information and investigation in the file.

DATE: BROOKLYN, NEW YORK
April 21, 2015

/S/Alexander Roytblat
ALEXANDER ROYTBAT, ESQ.

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
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Defendant (s),
-----X

VERIFIED COMPLAINT

ROYTBLAT & KALANT, PLLC

Attorneys for Plaintiff

Office and Post Office Address, Telephone, Facsimile

1928 Kings Highway | 3rd Floor

Brooklyn, NY 11229

TELEPHONE (718) 872-6374

FACSIMILE (718) 872-6375

"WE DO NOT ACCEPT SERVICE BY ELECTRONIC TRANSMISSION (FAX)"

Attorney(s) for

Service of a copy of the within

is hereby admitted

Dated:,

.....
Attorney(s) for

PLEASE TAKE NOTICE



NOTICE OF ENTRY

That the within is a (certified) true copy of an ORDER entered in the office of the clerk of the within named court on _____, 2015.



NOTICE OF SETTLEMENT

That an Order of which the within is a true copy will be presented for settle to the Hon. _____ one of the judges of the within named court, at _____, 2015, at 10:00 a.m.

**ROYTBLAT &
KALANT, PLLC**
Attorneys for Plaintiff
1928 Kings Hwy. 3rd Floor
Brooklyn, NY 11229
(718) 872-6374